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Case Number: 24STCV05932 Hearing Date: July 17, 2026 Dept: 406

5379 WHITTIER BOULEVARD

LLC,

Plaintiff,

v.

YOLANDA PADILLA, et

al.,

Defendants.

Case No.: 24STCV05932

Hearing Date: July 17, 2026

[TENTATIVE]

order RE:

cross-complainants' motion to permit

discovery of financial condition

BACKGROUND

On March 8, 2024, Plaintiff 5379

Whittier Boulevard LLC (Whittier) filed this action against Defendants Yolanda

Padilla (Padilla) and Jonathan Flores (Flores), asserting causes of action for

(1) trespass, (2) negligent interference with prospective economic advantage,

(3) intentional interference with prospective economic advantage, and (4) declaratory and injunctive relief.

Whittier owns a property adjoining that of Padilla and Flores. The dispute arises from Whittier's attempt to conduct renovations on a part of its property close to the boundary line between the two properties. After Padilla and Flores declined Whittier access to their property to conduct the renovations, Whittier began the renovations supposedly without encroaching onto the other property. However, Padilla and Flores allegedly engaged in a campaign of harassment to prevent the renovations from proceeding, based on the false assertion that the work encroached onto their property. This allegedly included trespassing onto Whittier's property and engaging in physical violence.

On April 3, 2024, Padilla and Flores filed a cross-complaint against Whittier, Logan Altman, Duval Campbell, Armed Elite Services, Raul Alvarez Ramirez, and Caribe Construction. Padilla and Flores filed the operative First Amended Cross-Complaint on February 10, 2026. The FACC adds Tekoa E. Burdine as a cross-defendant. The FACC asserts claims for (1) assault and battery, (2) terrorist threats, (3) trespass, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) negligent retention. Padilla and Flores allege that Whittier's renovations encroached onto their property and that the construction workers refused to leave. Whittier hired a security guard, Campbell, who allegedly helped the workers trespass onto the other property and allegedly assaulted Padilla when she attempted to stop him.

On June 5, 2026, Padilla and Flores filed the instant motion to permit discovery into Cross-Defendant Logan Altman's financial condition.

LEGAL STANDARD

"No pretrial discovery by the plaintiff shall be permitted with respect to the [defendant's financial condition] unless the court enters an order permitting such discovery pursuant to this subdivision." (Civ. Code, § 3295(c).) "Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on

the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294.” (Ibid.)

“In this context, a ‘substantial probability’ of prevailing on a claim for punitive damages means that it is ‘very likely’ that the plaintiff will prevail on such a claim or there is ‘a strong likelihood’ that the plaintiff will prevail on such a claim.” (Kerner v. Superior Court (2012) 206 Cal.App.4th 84, 120.) “The purpose of this requirement is to protect defendants’ financial privacy and prevent defendants from being pressured into settling nonmeritorious cases in order to avoid disclosure of their financial information.” (Ibid.)

DISCUSSION

Altman is the alleged owner of the Whittier property. (FACC ¶ 16.) Padilla and Flores seek punitive damages against Altman for his alleged role in trespassing onto their property, for hiring an armed guard to escalate the situation, and for purportedly demonstrating a disregard for their wellbeing.

a. Trespass

Padilla and Flores begin their argument by pointing out that Altman knew of the encroachment problem and intentionally trespassed onto their property. (Mtn. 4:17-7:26.) However, the mere commission of a tort such as trespass is insufficient to justify punitive damages. None of the arguments in the motion or the cited evidence indicates malice, oppression, or fraud. At most, Altman was aware of the property lines and disregarded them to proceed with the construction. This is a plain tort with no aggravating circumstances warranting punitive damages. Thus, the alleged intentional trespass does not support a “substantial probability” or “strong likelihood” of succeeding on the claim for punitive damages. (See Kerner, *supra*, 206 Cal.App.4th at p. 120.)

b. Armed Security

Next, Padilla and Flores argue that Altman intentionally hired armed security to escalate a volatile situation. (Mtn. 7:26-8:15.) However, the cited evidence does not demonstrate any malice,

oppression, or fraud. Altman's testimony shows that he was aware of an altercation in which the police were called. Thus, Altman testified that he "call[ed] Armed Elite Services to request their guard at the site to protect the workers." (Mtn. 8:1-6.) This is not egregious or aggravating. Hiring security after learning of a serious confrontation is arguably a reasonable response. Even the motion acknowledges that Altman "understood at that moment that the situation was sufficiently contentious that armed professional security was needed before he sent workers back the next day." (Mtn. 8:4-6.)

Padilla and Flores argue that Altman

"did not try to resolve the dispute through discussion, seek a court order, or pause the project." (Mtn. 8:6-11.) Instead, he hired armed security, which Padilla and Flores claim "was a choice made in conscious disregard of the homeowners' rights." (Ibid.) However, the fact that Altman did not take a more prudent approach to the situation does not mean he engaged in malice, oppression, or fraud. There is nothing particularly egregious about hiring security after learning of an altercation involving the police. The fact that the guard may have subsequently harmed Padilla or Flores does not prove that Altman acted with malice, oppression, or fraud in hiring security.

There is no evidence that Altman hired security with the intent to harm. Even the testimony cited in the motion shows that Altman was concerned for the workers and had no reason to assume that Campbell would act inappropriately. (See Mtn. 10:27-11:3.)

Therefore, the fact that Altman

hired Armed Elite Services does not support a "substantial probability" or "strong likelihood" of succeeding on the claim for punitive damages. (See Kerner, *supra*, 206 Cal.App.4th at p. 120.)

c. Concern for Padilla

The motion argues that Altman

demonstrated a disregard for Padilla's wellbeing: "When Altman arrived at the property after the February 22 incident, he did not ask about Ms. Padilla. He did not ask whether she had been hurt. He was asked at deposition whether, when he arrived and saw that Campbell was armed, he criticized Campbell or told him he should not have been armed. His answer was 'No.' His explanation: 'When I arrived on the site, I was mostly concerned for his well-being because he was visibly bleeding and injured from being attacked by the neighbor. So I was concerned about his injuries and I was surprised that he didn't press charges.'"

(Altman Depo., Vol. I, p. 78.).” (Mtn. 8:20-26.)

This testimony does not demonstrate malice, oppression, or fraud. To the contrary, Altman testified that he was concerned about Campbell, the guard, because Campbell was visibly injured. The fact that Altman did not express equal concern for Padilla, the other person allegedly injured in the altercation, does not mean Altman acted with malice, oppression, or fraud. There is no evidence that Altman was aware of Padilla’s alleged injuries at the time, intended for Padilla to be harmed, prevented Padilla from obtaining medical treatment, or otherwise caused Padilla’s alleged injuries. Padilla and Flores merely take issue with Altman’s subjective reaction after the incident had already occurred. This is not sufficient to establish a “substantial probability” or “strong likelihood” of succeeding on the claim for punitive damages. (See Kerner, *supra*, 206 Cal.App.4th at p. 120.)

d. Condemning Campbell’s
Actions

Padilla and Flores further take issue with the fact that Altman did not sufficiently condemn Campbell’s statements and actions, and even suggested that Campbell should have pressed charges against Padilla. (Mtn. 9:7-10:24.) As with above, Altman’s subjective reaction after the fact does not show that he engaged in malice, oppression, or fraud. As the motion acknowledges, Altman testified that he witnessed Campbell’s injuries. The motion also acknowledges that Altman testified he was unaware Campbell had thrown something at Padilla: “He answered that he had not known about the wood-throwing at the time.” (Mtn. 9:23-25.) Thus, it was arguably reasonable for Altman to believe that Padilla or Flores were in the wrong. The evidence does not show that Altman confirmed Campbell had engaged in wrongdoing and then ratified or encouraged it.

Moreover, Altman did testify that he would have preferred if Campbell had not been involved in the situation, and testified that he does not “condone throwing boards at each other.” (Plntf.’s Ex. K at 88:4-11, 185:10-12.) This is the opposite of approving or ratifying Campbell’s alleged actions. Altman is not guilty of malice, oppression, or fraud merely because he did not condemn Campbell to the degree that Padilla and Flores would prefer. This is not sufficient to establish a “substantial probability” or “strong likelihood” of succeeding on the claim for punitive

damages. (See Kerner, *supra*, 206 Cal.App.4th at p. 120.)

In sum, Padilla and Flores have failed to meet the showing required under Code of Civil Procedure section 3295. Therefore, their request to conduct financial discovery must be denied.

CONCLUSION

Cross-Complainants Yolanda Padilla's and Jonathan Flores' motion to compel financial discovery is DENIED.